

# **CONNOLLY v. DE LA CRUZ**

**23CV46549**

## **CROSS-DEFENDANT'S DEMURRER AND MOTION TO STRIKE**

This civil action stems from a dispute over easement rights. Before the Court is a demurrer directed to the operative Cross-Complaint filed 03/09/23, as well as a demurrer and motion to strike directed at the First Amended Answer filed 05/01/23.

The salient facts are as follows:

Plaintiff owns APN parcels 048-025-034 and 050-002-120, commonly and collectively referred to as Cain Ranch (and hereinafter referred to as "the Ranch"). The property was previously burdened by a 16.5 foot prescriptive easement belonging to Linkletter Properties for ingress and egress to adjacent property (with the right to erect a fence with a gate), but plaintiff maintained a co-equal easement over a similar strip for cattle grazing and herding. According to plaintiff, the dueling co-equal easements were unburdened by judgment, merger and eventual extinguishment. Despite the loss of said easement, defendant accessed the strip and removed a portion of the perimeter fence restraining cattle from roaming free.

Defendant owns APN 048-051-034, and is the elected road manager at Valley Hills Estates. According to defendant, the aforementioned easement overlaps a 60-foot right of way in the referenced subdivision parcel map. Recently, some trees fell in the disputed easement, and plaintiff erected a fence post therein – both of which to defendant qualify as impediments.

Although the matter of easements is ordinarily fairly routine and easy to navigate with the right recordings and expertise, plaintiff and defendant have engaged in what can best be described as over-convoluted explanations. While the parcel maps assist, "a petition for an injunction to restrain real property encroachments or protect easements must depict by drawings, plot plans, photographs, or other appropriate means, or must describe in detail the premises involved, including, if applicable, the length and width of the frontage on a street or alley, the width of sidewalks, and the number, size, and location of entrances." Barren references to recordings and judgments does not provide this Court the required precision to even start touching the merits. Of course, with this being a demurrer, the merits of the claim are in fact not material so long as the factual averments are not clearly refuted by the recordings proffered – and they are not.

Nevertheless, plaintiff (cross-defendant) is correct that uncertainty exists regarding who ought to be the real party in interest for purposes of the cross-complaint. Even though

defendant alleges that he owns a parcel which – when viewed on the parcel map – appears to be in the Valley Hills Estate development, he does not allege to have a personal interest in the easement (or right of way) allegedly infringed by plaintiff. (See XC Para 5-6.) The real party in interest is the person who has the right to sue under the substantive law. It is the person who owns or holds title to the claim or property involved, as opposed to others who may be interested or benefited by the litigation. (See *Glen Oaks Estates Homeowners Ass'n v. Re/Max Premier Properties, Inc.* (2012) 203 Cal.App.4th 913, 920; *Jasmine Networks, Inc. v. Superior Court* (2009) 180 Cal.App.4th 980, 991; *Property Owners of Whispering Palms, Inc. v. Newport Pac., Inc.* (2005) 132 Cal.App.4th 666, 673; *Gantman v. United Pac. Ins. Co.* (1991) 232 Cal.App.3d 1560, 1568.)

Demurrer to the cross-complaint for failure to state a basis to proceed as real party in interest is SUSTAINED with 30 days leave to amend.

Plaintiff also demurs to the First Amended Answer. Pursuant to CCP §430.20, a party may demur to an answer on only one of three grounds:

- (1) Failure to state facts sufficient to constitute a defense;
- (2) Uncertainty;
- (3) Failure to state whether contract is oral or written.

An answer may include a general denial, specific denial or a new matter constituting an affirmative defense. (CCP §431.30.) A general denial in an answer puts in issue the material allegations of the complaint, including all essential elements of the claims. (*Advantac Group, Inc. v. Edwin's Plumbing Co., Inc.* (2007) 153 Cal.App.4th 621, 627.) Although the defendant should aver “carefully and with as much detail” as possible, allegations should be liberally construed. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 384.) Since a general denial puts in issue the material allegations of the complaint, affirmative defenses which only redress the essential elements of plaintiff's claims can be adequately stated with mere generic references. (See *Advantac Group, Inc. v. Edwin's Plumbing Co., Inc.* (2007) 153 Cal.App.4th 621, 627.) However, for affirmative defenses raising “new matter” (that is, matter upon which defendant would have a burden of proof), the pleader must include ultimate facts sufficient to put the plaintiff on notice of the nature of the defense. (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 549-550; *Hata v. Los Angeles County Harbor/UCLA Medical Center* (1995) 31 Cal.App.4th 1791, 1805.) Equitable defenses are “new matter” requiring ultimate facts pled. (See *Camp v. Jeffer, Mangels, Butler & Marmaro* (1995) 35 Cal.App.4th 620, 638–639.) If, as often occurs, defendants do not have evidence of defenses but fear a waiver argument, they include the defense in conclusory, barren fashion. (See *Ekstrom v. Marquesa at Monarch Beach HOA* (2008) 168 Cal.App.4th 1111, 1122-1123.) Defendants should only plead the defense when the evidence supports it and seek leave to amend if need be – which is to be routinely granted. (See *Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761; *Green v. Rancho Santa Margarita Mortgage Co.* (1994) 28 Cal.App.4th 686, 692-693.)

With regard to defendant's First Amended Answer, the First (failure to state) and Seventh (mitigation) affirmative defenses are general and can be pled without facts. The balance of the affirmative defenses require some facts. Although plaintiff failed to properly demur to each affirmative defense within the First Amended Answer, such a technical defect can be easily circumvented with a MJOP. As such, it is best to improve the answer at this time. Demurrer to the Second – Sixth affirmative defenses for failure to state facts is SUSTAINED with 30 days leave to amend. The "back-up motion to strike" is defective and moot.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiff to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.